

Counsel has provided ample evidence and discussion of the risk in pursuing litigation on a contingency basis, the efficient and fair resolution of the action, and public interest served in pursuing the litigation to support a multiplier.

Accordingly, the motion for an award of attorney fees is granted in the amount of \$150,000.

The request for actual costs of \$16,595.39 is approved. The remaining \$8,404.61 of the \$25,000 reserved for costs can be returned to the common fund for the benefit of the class members.

Payment to Class Representatives

Plaintiff requests approval of an award of \$5,000 for her role as representative plaintiff and the additional time, effort, and risk accepted in performing her role. Plaintiff did not provide an additional declaration with the motion for final approval. However, counsel's discussion of the significant risk of protracted litigation and no recovery together with the declaration submitted with the motion for preliminary approval provides an adequate basis for approving the award.

The court intends to approve the service award of \$5,000 to plaintiff.

Payment to Class Administrator

The court approved payment of up to \$60,000 was approved to Kroll Settlement Administration LLC with the motion for preliminary settlement approval. Kroll is now requesting costs "not to exceed" \$79,400 due to changes in the form of the Short-Form Notice postcard, a higher than anticipated claims participation rate, and a longer than anticipated Long-Form Notice increasing costs. (Passarella Decl., ¶ 18.) Kroll has not provided a detailed line-item estimate with this increased request or with the motion for preliminary approval. The 30% increase in costs to administer the settlement does not give the court confidence in Kroll's ability to estimate its fees for services.

The terms of the settlement do not set the amount to be paid for settlement administration and the moving papers indicate the parties agree that the increased costs are reasonable and should be paid from the settlement. The court will approve the amount of \$79,400 for the cost to complete its services as settlement administrator.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/8/2026.
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: **Emery v. Cheng**
Superior Court Case No. 23CECG04214

Hearing Date: June 10, 2026 (Dept. 503)

Motion: by Plaintiff to Quash

**If oral argument is timely requested, it will be entertained on
Thursday, June 11, 2026, at 3:30 p.m. in Department 503.**

Tentative Ruling:

To find moot in light of the parties' resolution of their dispute as to the date, time, and location of Plaintiff's deposition. (Vecchiarelli Suppl. Decl., ¶¶ 4-5.) To deny both parties' requests for sanctions.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 6/8/2026.
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